

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JULIE GROULX,

Petitioner

VS.

SUVAS VAJRACHARYA,

Respondent

) Case Number: FDI-24-799234

) Hearing Date: June 9, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: ROGER CHAN

REQUEST FOR ORDER OF CHILD SUPPORT REQUEST FOR ORDER : CHILD SUPPORT ADD
ON EXPENSES, SANCTIONS

TENTATIVE RULING

A. Procedural History

- 1) Petitioner Julie Groulx (Mother) and Respondent Suvas Vajracharya (Father) married on 4/11/2018 and separated on 2/12/2014, for a marriage of 5 years and 10 months. The parties have one minor child, Brielle (DOB: 2/26/2022, age 4). Mother is represented by attorney Anne Fokstuen. Father is represented by attorney Nachlis Cohade Lopez-Whitaker, LLP.
- 2) There is a 10-Year Criminal Restraining Order currently in effect for Mother's protection against Father.
- 3) On 1/20/2026, Judgment was entered in this matter which incorporated the parties' settlement agreement. The settlement agreement provides in relevant part:
 - a. Father shall pay Mother \$5,220 per month in base child support by automated direct deposit.
 - b. Father shall pay 70% of Mother's childcare costs related to employment or school and will follow the directives of FL-192.

1 c. Father shall pay 70% of Brielle's extracurricular activities up to a maximum contribution
2 by Father of \$800 per month. Any extracurricular activity expense above this \$800 per
3 month cap will require mutual consent.

4 4) Now on for hearing is Mother's Request for Order filed 4/6/2026. Mother states that she pays for
5 childcare and extracurricular activities for Brielle in Canadian dollars and there is a dispute
6 between the parties regarding whether Mother must convert her reimbursement requests to US
7 dollars. Mother states Father sometimes fails to timely pay his share of add-on expenses and
8 suggested to Mother's prior nanny that she was overpaid (which caused the nanny to quit).
9 Mother requests that the Court order Father to deposit into a child support trust account a year's
10 worth of Father's share for Brielle's nanny (\$3,000 per month) and activities (the maximum \$800
11 per month) under Family Code section 4560. Father states this will prevent the parties form
12 unnecessary contact and conflict.

13 5) Attached to Mother's Request for Order is a declaration by Mother's attorney Anne Fokstuen
14 who outlines additional issues between the parties, including the fact that Father transferred the
15 incorrect Tesla to Mother, which caused delays and other issues. Ms. Fokstuen states Mother
16 incurred 14 hours to communicate with opposing counsel regarding the Tesla and other items to
17 be transferred and in drafting the instant Request for Order. Ms. Fokstuen anticipates additional
18 legal fees to review the response, draft a reply, and appear in Court. Ms. Foksteun requests that
19 Father be ordered to pay \$15,000 under Family Code section 271 and 2030.

20 6) On 5/27/2026, Father filed a Responsive Declaration. Father states he previously paid his share of
21 childcare expenses for Brielle's nanny and the parties use OurFamilyWizard (OFW) to manage
22 other child support add-on expenses. Father states that after Mother relocated to Canada in
23 January 2026, she began paying expenses in Canadian dollars but billing Father in US dollars,
24 which leads Father to make an overpayment. Father states he has paid all properly requested
25 expense to date apart from a charge created by Mother on OFW on 4/27/2026 for childcare which
26 was not accompanied by a receipt. Father asks the Court to require Mother to comply with the
27 Judicial Council Form FL-192, which Father states requires (a) an itemized statement of charges,
28 (b) proof of payment, and (c) the amount due and owing from me. Father requests that future
29 requests for reimbursements come with receipts as proof of payment with amount and

denomination, not just invoices. Father asks the Court to deny Mother's request that he be ordered to advance a year of child support add-on expenses and to establish a child support trust account, because "[Mother] has provided no factual basis to modify the current Judgment and she is the one failing to comply with its existing terms." Father further requests that the Court deny Mother's request for attorney's fees sanctions because she requests \$15,000 "without providing any meaningful explanation or itemization of how she arrived at that figure." Father also asks the Court to award him \$7,000 in Family Code Section 271 attorney's fees sanctions because of "[Mother]'s ongoing failure to comply with the FL-192 procedures, her repeated misbilling in USD for expenses incurred in CAD that has caused me to overpay, and her decision to proceed by RFO rather than address straightforward documentation and currency questions through counsel."

- 7) On 5/27/2026, Father's attorney Yau Lee filed a declaration detailing efforts she has made to raise the issues outlined in Father's declaration directly with Mother's attorney, and that Mother's attorney unexpectedly filed her Request for Order rather than continuing to meet and confer. Ms. Lee states that Mother's attorney did not meet and confer in good faith before filing the present motion.
- 8) On 6/2/2026, Mother filed a Reply Declaration reiterating her original requests. Mother raises (for the first time in her Reply) a claim that Father owes her \$2,888.37 in daycare costs, \$563.75 to her part-time nanny, and \$201 in piano lessons. Mother states that after her attorney spoke with Father's attorney, she began submitting all add-on expenses in US dollars along with invoices and receipts, but Father is still not paying the add-on expenses in a timely way. Mother states the childcare costs are likely to remain the same until their daughter starts school, reiterates her request for Father to deposit one year's worth of his share of childcare and activity costs, and that any overpayments can be applied to the next year or can be reimbursed to Father. Mother states she should "not have to communicate with my abuser every month to get reimbursement and support our daughter" and that her proposal is "likely less expensive than having to involve lawyers every month."
- 9) On 6/2/2026, Mother's attorney filed a declaration stating that Mother had incurred \$5,337.54 before she reviewed Father's responsive declaration and with additional fees incurred through the drafting of the Findings and Order After Hearing, the total fees charged will likely be \$12,737.54.

Ms. Fokstuen states, “The case has not finished yet and therefore the request for \$15,000 in legal fees should be granted caus[ed] by the Respondent’s lack of cooperation in finalizing the judgment and making payment for the child to the Petitioner.”

B. Findings and Order

The Court has read and considered the pleadings, declarations, and other evidence submitted in this matter. For good cause shown, the Court makes the following findings and orders:

- 1) The Court does not find good cause to grant Mother’s request for Father to pre-pay a year’s worth of childcare and activity expenses under Family Code section 4560. Mother’s request is denied.
- 2) The Court also does not find good cause to modify the terms of the 1/20/26 Judgment as it relates to the child support add-on reimbursement procedure. The parties are ordered to comply with the terms of the Judgment, including the requirement that the parties follow the procedures outlined in Judicial Council Form FL-192.
- 3) Because disputes have arisen regarding how to comply with the reimbursement procedure for add-ons, the Court will make the following clarifying orders. When Mother seeks reimbursement from Father for child support add-on expenses, she must provide to Father (a) an itemized statement of charges, (b) proof of payment, and (c) the amount due and owing from Father in US dollars. If it is unclear from the statement of charges or proof of payment what denomination the expense was charged and paid, Mother shall include a note clarifying this. Father then has 30 days to make the payment requested.
- 4) The Court will not make any order regarding Mother’s claim that Father owes her \$2,888.37 in daycare costs, \$563.75 to her part-time nanny, and \$201 in piano lessons as this claim was raised for the first time in Mother’s Reply Declaration. The parties are ordered to meet and confer on this issue.
- 5) Each party’s request for Family Code section 271 attorney’s fees sanctions is denied.
- 6) Mother’s request for attorney’s fees under Family Code section 2030 is denied without prejudice as Mother did not file an Income and Expense Declaration despite having ample time to do so.
- 7) The Court will prepare the Findings and Order After Hearing.